

26NWCV02010 26NWCV02010

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Case Number: 26NWCV02010 Hearing Date: August 7, 2026 Dept: P

ORTIZ v. VAL-CHRIS INVESTMENTS, INC., ET AL.

CASE NO.: 26NWCV02010

HEARING: 08/07/2026 @ 9:30 AM

#12

TENTATIVE ORDER

Plaintiff Joe Robert Ortiz's motion to consolidate is
GRANTED. Case no. 26NWCV02010 is deemed the lead case.

Moving party to give notice.

Plaintiff Joe Robert Ortiz (Plaintiff) moves to relate and
consolidate the instant action with Karraka Family LP v. Joe Robert Ortiz,
Case No. 26NWUD00971 (UD Action).

Background

On June 10, 2026, Plaintiff filed this wrongful foreclosure
action against Defendants Val-Chris Investments, Inc. (Val-Chris); Harraka
Family Limited Partnership (Harraka); Ashwood TD Services, LLC; All persons
unknown, claiming any legal or equitable right, title, estate, lien, or
interest in the property described in the complaint adverse to plaintiff's
title, or any cloud upon plaintiff's title thereto; and Does 1-25, inclusive.
The complaint alleges Plaintiff is the fee simple owner of plots of land

commonly described as 9816 Bradwell Ave, Santa Fe Springs, CA 90670 (Subject Property). (Complaint, ¶ 8.) The complaint alleges that due to delays and inaction by Defendants Val-Chris and Harraka, Plaintiff lost the ability to refinance with Preferred Mortgage Lender, accrual of purported fees, interest, and punitive damages. (Complaint, ¶ 26.)

The complaint asserts nine causes of action: (1) breach of contract; (2) Unfair Competition (Bus. & Prof. Code, § 17200 et seq.); (3) false promise; (4) negligent misrepresentation; (5) cancellation of instrument; (6) wrongful foreclosure; (7) quiet title; (8) declaratory relief; and (9) accounting.

Legal Standard

Code of Civil Procedure section 1048 provides: "When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." (Code Civ. Proc., § 1048, subd. (a).)

Under California Rules of Court, rule 3.350(a)(1), a notice of motion to consolidate must: (A) List all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record; (B) Contain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first; and (C) Be filed in each case sought to be consolidated. Pursuant to California Rules of Court, rule 3.350(a)(2), the motion to consolidate: (A) Is deemed a single motion for the purpose of determining the appropriate filing fee, but memorandums, declarations, and other supporting papers must be filed only in the lowest numbered case; (B) Must be served on all attorneys of record and all non-represented parties in all of the cases sought to be consolidated; and (C) Must have a proof of service filed as part of the motion. "[T]he lowest numbered case in the consolidated case is the lead case." (Cal. Rules of Court, rule 3.350(b).)

Discussion

Plaintiff moves to consolidate this action with the UD Action or to stay the UD Action pending determination of this action. Plaintiff moves on the grounds that both actions involve the same Subject Property, there are complex questions of title, and that the Plaintiff in the UD Action is a

Defendant in this action. Plaintiff moves pursuant to *Martin-Bragg v. Moore* (2013) 219 Cal.App.4th 367, 387.

“Ordinarily, issues respecting the title to the property cannot be adjudicated in an unlawful detainer action.” (*Martin-Bragg*, *supra*, 219 Cal.App.4th at p. 387.) However, a “trial court has the power to consolidate an unlawful detainer proceeding with a simultaneously pending action in which title to the property is in issue...because a successful claim of title by the tenant would defeat the landlord's right to possession.” (*Ibid.*) “When an unlawful detainer proceeding and an unlimited action concerning title to the property are simultaneously pending, the trial court in which the unlimited action is pending may stay the unlawful detainer action until the issue of title is resolved in the unlimited action, or it may consolidate the actions.” (*Ibid.*) “If [a trial court] does neither and instead tries the issue of title under the summary procedures that constrain unlawful detainer proceedings, the parties’ right to a full trial of the issue of title may be unfairly expedited and limited.” (*Ibid.*)

In so holding, the Court of Appeal noted that “[i]n unlawful detainer proceedings, ordinarily the only triable issue is the right to possession of the disputed premises, along with incidental damages resulting from the unlawful detention,” and that “[o]rdinarily, issues respecting the title to the property cannot be adjudicated in an unlawful detainer action.” (*Martin-Bragg*, *supra*, 219 Cal.App.4th at p. 385.) “If complex issues of title are tried in the unlawful detainer proceeding, the proceeding loses its summary character; defects in the plaintiff’s title ‘are neither properly raised in this summary proceeding for possession, nor are they concluded by the judgment.’ [Citations.]” (*Ibid.*)

In opposition, Harraka argues that consolidation or a stay deprives it of the statutory priority afforded to unlawful detainer proceedings. Harraka argues that the UD Action concerns Plaintiff’s immediate right to possession following a trustee’s sale, perfection of title, service of a notice, and Plaintiff’s continued possession. In contrast, Harraka argues this action is broader—involving alleged loan-servicing misconduct, payoff-demand violations, disputed charges, alleged misrepresentations, wrongful foreclosure, cancellation of instruments, quiet title, damages, declaratory relief, and accounting. Defendant additionally files a supplemental opposition raising that the Notice of Related Case has not been adjudicated.

The Court finds that consolidation is proper here as Plaintiff's arguments involve "complex" title questions to the Subject Property as exemplified by Harraka's own characterization of this action as well as the multiple defendants party to this action which are not joined in the UD Action. Notably, Harraka does not oppose consolidation based on the complexity, or lack of complexity, of the title issues. As such, the Court finds Martin-Bragg on point. (See Martin-Bragg, supra, 219 Cal.App.4th at p. 393 ["adjudication of complex issues of title to property should not be forced to adhere to the strictures that apply to summary proceedings for unlawful detainer."].)

As to Harraka's argument that adjudication of the Notice of Related Case is required first, Harraka does not cite to authority. The Court notes that the actions involve the same Subject Property. (See Cal. Rules of Court, rule 3.300(a)(c) [cases are deemed related when they "[i]nvolve claims against, title to, possession of, or damages to the same property."].)

Accordingly, Plaintiff's motion to consolidate is GRANTED.
Case no. 26NWCV02010 is deemed the lead case.

Plaintiff's evidentiary objections to the Declaration of Madison Block are sustained as legal conclusions. The Court notes that the arguments made in the declaration are also made in both oppositions.